



File No.: EXP202205519

RESOLUTION OF ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On May 6, 2022, a complaint was filed with the Spanish Agency for Data Protection against the CITY COUNCIL OF GANDÍA, with NIF P4613300E (hereinafter, the complained party).

The reasons for the complaint are as follows:

The complainant alleges that an agent of the City Council of Gandía (with ***TIP.1) photographed their ID card, on both sides, and the license plate of the vehicle they were driving, without responding when the complainant asked why they were doing so. This issue was brought to the attention of the aforementioned city council through a registered entry document ***REGISTRO.1, without receiving a response.

Along with the notification, the following is submitted:

- Request for information to the City Council of Gandía.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party/ALIAS, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was electronically notified and received by the responsible party on May 13, 2022, as stated in the certificate included in the file.

No response has been received to this forwarding document.

THIRD: On July 18, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, having knowledge of the following aspects:

On August 23, 2022, a request for information was sent to the complained party in which they were asked, among other things, to inform about the response provided by that City Council to the complainant regarding the exercise of the right to information about the processing of their personal data. The request was notified on August 24, 2022.

On September 1, 2022, the complained party sent the following information and statements to this Agency:

- On August 31, 2022, the response to the complainant was forwarded via the electronic headquarters (outgoing registration 9328/2022).

- The mobile devices that agents must use for their work are corporate; all agents have corporate mobile devices at their disposal.

- The data controller is the City Council of Gandía (Local Police of Gandía). The purpose of the processing is to carry out police work.

- The photographed IDs, as well as any image taken to complete files or records of entities, are transferred to the city council's systems online, through the police management app installed on each of the corporate mobile devices used by the Gandía police.

- There are two ways to transfer images taken by photography to the city council's systems via the mobile device app:

1. Take the photograph directly from the APP; in this case, the image is never stored on the mobile device.

2. First, take the photo from the camera application of the same mobile device and then transfer it to

the police management application; in this case, the image would be stored in the phone's memory, and it is the same agent who, once the image has been transferred, must delete the image from the mobile device.

All devices have an access PIN, and the APP also has a password that must consist of uppercase and lowercase letters, numbers, and a minimum of eight characters, with individual access for each user who has restricted access according to their role. Furthermore, in order to access the APP, the mobile device must be registered in the central database of the management program, so access to the APP can be restricted at any time; it should be noted that the APP does not store any data on the mobile device.

Depending on the case, the devices may:

- After finishing the service, the agent deposits the mobile device in the police premises where it is kept secure 24 hours a day; these devices are used by different agents.
- The agent is responsible for the device and is always in charge of it; this device is only used by that agent.

(Note: the underlining has been added by the Agency).

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/8

It is verified that the City Council has a link on its website where the rights of affected individuals regarding the processing of their data can be exercised:

***URL.1

From that webpage, it is possible to download the Register of Processing Activities of the City Council of Gandía (hereinafter, RAT), which is published at the link: ***URL.2

The RAT specifies the following treatments, among others:

*. * Treatment XX/XX

- .- Page 112 of the Register of Processing Activities.
- .- Activity of treatment: Road Safety
- .- Purpose of the treatment:

To improve road safety through the prevention and investigation of accidents, by managing reports, recording accidents, revoking driving licenses; and establishing controls for alcohol consumption, toxic substances, documentation, seat belts, or any other measures that lead to safer circulation.

.- Legal Basis:

..* Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data.

..* Legislative Royal Decree 6/2015, of October 30, approving the consolidated text of the Law on Traffic, Motor Vehicle Circulation, and Road Safety.

.- Category of personal data:

- Identifying (Name and surname, Image, Signature, ID/NIF, Signature, Address, Phone, Fingerprint)
- Personal (Date of birth, Nationality, Place of birth, Gender, Age, Physical or anthropomorphic characteristics, Contact details)
- Social (Licenses, permits, authorizations)
- Economic-financial (Insurance)
- Specially Protected (Health)
- Related to criminal or administrative offenses (Criminal offenses, Administrative offenses)

*. * Treatment XX/XX

- .- Page 128 of the Register of Processing Activities.
- .- Activity of treatment: Infractions to the Mobility Ordinance
- .- Purpose of the treatment:

To organize and regulate the use and utilization of public roads through the processing of the sanctioning procedure derived from infractions to the Mobility Ordinance, as well as to monitor and

control fines in the different phases of their processing.

.- Legal Basis:

..* Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data.

..* Mobility Ordinance.

.- Category of personal data:

- Identifying (Name and surname, Image, ID/NIF, Address)
- Personal (Nationality, Age)
- Social (Other data, Licenses, permits, authorizations)
- Related to criminal or administrative offenses (Criminal offenses)
- Other types of data: in inquiries made to driver data, health data may be known)

On April 13, 2023, a second request for information was sent to the responding party, requesting clarification on certain aspects of their previous response, providing the following information and statements:

Point 1.- Regarding the copy of the transfer of the response sent to the claimant, the responding party sends a copy of the report made, signed on August 31, 2022.

The document refers to the events that occurred.

The responding party states that the Agent required the claimant to identify themselves and "as it was difficult to take the data in writing, since they were regulating traffic, a photograph of the ID and the vehicle was taken for identification purposes, but no fine of any kind was imposed in the end."

The responding party alleges the application of Organic Law 4/2015, of March 30, on the protection of citizen security, which in its article 16 establishes the identification of persons by agents of the Security Forces and Corps in the performance of their functions of investigation and crime prevention, as well as for the sanctioning of criminal and administrative offenses.

Point 2.- Regarding the reason why the transfer was not made within the indicated timeframe, the responding party explains that on August 31, 2022, they prepared a report to respond to the claimant and that "After receiving a notice from the AEPD, requesting the reason why the transfer was not made to the claimant in a timely manner and after consulting the files, it was detected that the official in charge of processing the outgoing register made an error in the circuit of the computer program, leaving the report pending for sending in the outgoing register."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/8

Point 3.- The responding party indicates that there are no records of the claimant in the files of the Local Police of Gandía.

Point 4.- The responding party continues to state that "If, exceptionally, photographs of any documentation need to be taken, they are always done with the official devices provided by this Headquarters, and once the necessary verifications for identification are made, the images are deleted without leaving any trace in any police file."

Point 5.- The claiming party states that "In the Local Police of Gandía, there are NO protocols for capturing images; the existing Service Order regarding image capture is attached." The provided order is signed and dated April 26, 2023.

The Service Order indicates the following points:

*1.- The mobile devices to be used during the course of the service must be corporate.

*2.- The images that, exceptionally, are taken to fill out the files of any infraction will be taken directly from the APP. In the event that the photograph must be taken directly from the device's camera, it will be transferred to the app as soon as possible, and once the necessary verifications are made, the image will be deleted without leaving any trace of it, within a maximum period of 48 hours.

*3.- Efforts should be made to avoid photographing citizens' identification documents as much as possible, as there are other methods to record identification.

*4.- Before the end of the service and returning the material to access control, and in any case, within a maximum period of 48 hours, the device will be reviewed, and all captured images will be deleted.

*5.- It is reminded that personal phones cannot be used to photograph the documentation of identified individuals.”

Point 6.- Regarding the information provided to the claimant at the time of requesting their ID to take photographs, the responding party submits the report of the acting Officer, dated May 20, 2022, detailing the reasons that led to the taking of photographs.

The officer states, among other aspects of the events that occurred, that: “As it was impossible to take the data in writing (because I was regulating traffic), I took a photo of the ID and the vehicle that the gentleman abandoned. The reason I did not write a report on this gentleman's behavior was that there are many drivers who behave in the same way, and in the vast majority of cases, everything ends there, and if we had to write reports on all of them, it would be impossible to fulfill our obligation to regulate traffic for the road safety of citizens.”

LEGAL GROUNDS

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

6/8

I

Competence

In accordance with the functions assigned to each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Principles of data processing

Article 5 of the GDPR establishes the principles relating to the processing of personal data by the data controller and/or processor, and in its paragraph 1.c) it specifies that “the processing of personal data must be adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed,” known as the principle of “data minimization.”

It should be clarified that this article does not limit the excess of data, but rather the necessity. That is, personal data will be “adequate, relevant, and limited to what is necessary” for which they were collected, so that, considering the circumstances that occurred at the time, if the objective pursued for obtaining personal data could have been achieved by other means, without excessive data processing, that means should have been used in any case. This is also indicated in Recital 39 of the GDPR, which states: “Personal data should only be processed if the purpose of the processing could not reasonably be fulfilled by other means.”

III

Established facts

In the case at hand, an officer of the City Council of Gandía (with ***TIP.1) photographed with a mobile phone the ID of the claiming party, on both sides, and the license plate of the vehicle they were driving, not responding when the claimant asked why he was doing so.

In the response letter sent to the claiming party, it was informed that due to the admonition of the claiming party to the officer regulating traffic at a moment of congestion, the officer could not take note of their data and by

C/ Jorge Juan, 6

He photographed the ID and the vehicle, given the possibility of committing an administrative infraction; which was ultimately not imposed.

To carry out this action, the circumstances for the agent of the City Council were as follows: that he was directing traffic at a time of significant congestion, that he had to identify the claimant very quickly; that he used the institutional mobile phone to photograph the ID and the vehicle; that it was deleted from the device immediately and that the data from the City Council's files were canceled.

The fact that the circumstances of the events advised to expedite identifications as much as possible, using an exceptional means of identification such as taking photographs with an official mobile phone belonging to the City Council, allowed the identification process to reduce the agents' time. All of this, combined with the fact that, once the necessary checks in the identification were made, the images taken with the mobile were deleted without leaving any trace in any police file, as confirmed by the City Council of Gandía.

IV

Conclusion

The following aspects should be highlighted:

- The agents use corporate mobile devices.
- The photographed IDs are transferred to the City Council's systems online.
- When the photo is taken from the camera application of the mobile device, the image is stored in the phone's memory, and it is the agent who, once the image has been transferred, must delete the image from the mobile device.

It has been verified that the RAT of the City Council of Gandía is published and available. The RAT records the processing activities related to Road Safety and Violations of the Mobility Ordinance.

The existence of a general order from the body for capturing images has been evidenced, signed on April 26, 2023, which states that the images taken to fill out the files will be made directly from the APP, and that, in the event that the photograph is taken directly from the device's camera, it will be transferred to the app as soon as possible and will be deleted within less than 48 hours, and that photographing citizens' identification documents should be avoided as much as possible.

Therefore, based on the above, it is considered that the use of the official mobile phone of the acting unit to take photographs of the claimant's ID, under such exceptional circumstances as those previously exposed, complies with the principle of data minimization, as stated in Article 5.1.c) of the GDPR, especially since they were deleted from the device once the objective for which they were taken was fulfilled, leaving no trace of them in any file of the claimed City Council.

Thus, based on the indications in the previous paragraphs, no evidence has been found to substantiate the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

In accordance with the above, the Director of the Spanish Agency for Data Protection AGREES:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to the CITY COUNCIL OF GANDÍA and to the claimant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative

Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-020323

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es